

TENDER DOCUMENT — RFT 3300-IND-0007

CONSTRUCTION CONTRACT — LIGHT INDUSTRIAL UNIT EXTENSION

1. PROJECT OVERVIEW

Project Name	Kingsford Light Industrial Unit Extension
Location	Kingsford Business Park, Plot 12
Project Value	USD 3.6 Million
Duration	10 months from Notice to Proceed
Client	Kingsford Properties Group

2. FINANCIAL REQUIREMENTS

- Contract Value: USD 3,600,000 (fixed price lump sum)
- Payment Terms: Monthly invoicing based on certified work completion
- Milestone payments: 15% mobilization / 35% structural completion / 35% fit-out and services / 15% final handover
- Retention: 8% holdback from each invoice, released 4 months after final acceptance
- Performance Bond: 10% of contract value, to be provided within 14 days of award
- Payment Terms: Net 45 days from invoice date

3. TECHNICAL SCOPE

3.1 Scope Includes

- Single-storey steel-framed extension to existing warehouse unit
- New concrete slab and foundations tying into the existing structure
- Mechanical, electrical, and fire suppression extension to cover the new area

3.2 Site Conditions

- Site accessible via a shared access road also used by the client's ongoing operations, requiring coordinated delivery scheduling
- Preliminary geotechnical survey suggests generally stable soil, but a full site investigation has not yet been completed and is recommended before foundation design is finalized
- Existing utilities documented but tie-in points require verification during detailed design

3.3 Timeline

- Design and permitting: Months 1-2
- Foundations and structural steel: Months 3-6, dependent on completing the outstanding geotechnical investigation early in this window
- Fit-out and M&E;: Months 6-9
- Commissioning and handover: Month 10, schedule has limited float given the dependency on the pending site investigation

4. EXPERIENCE REQUIREMENTS

- Minimum 6 years experience in light industrial construction

- Minimum 2 completed projects of similar scale
- Minimum annual turnover USD 8 Million for last 3 years
- ISO 9001 certification required

5. CONTRACT TERMS AND CONDITIONS

5.1 Liability

- Contractor liability capped at 25% of contract value for direct damages
- No liability cap for gross negligence or willful misconduct
- Mutual indemnification for third-party claims arising from each party's own negligence, capped at the same 25% of contract value

5.2 Termination

- Client may terminate for convenience with 45 days notice; contractor paid for work completed plus reasonable demobilization costs
- Either party may terminate for material breach with 30 days notice if not cured
- Contractor has 10 days to submit cost impact of any change order
- If actual site or ground conditions differ materially from the preliminary geotechnical assessment, the cost and time impact is to be addressed through the standard change order process rather than borne solely by either party

5.3 Disputes

- Disputes resolved by mediation, then binding arbitration, under the law of the project jurisdiction

5.4 Warranty

- Defects liability period: 12 months from practical completion
- Contractor liable for defect rectification at no additional cost during the warranty period

5.5 Force Majeure

- Standard force majeure clause covering acts of God, natural disasters, and government-ordered restrictions
- Force majeure notification required within 14 days of occurrence

5.6 Legal and Regulatory Compliance

- Contractor shall perform all work in compliance with applicable local building codes and occupational health and safety law
- All works subject to inspection and sign-off by the local building authority

6. PERFORMANCE SECURITY AND INSURANCE

- Performance Bond: 10% of contract value
- Insurance Requirements: General Liability minimum USD 5 Million per occurrence

7. LIQUIDATED DAMAGES

- Schedule Delay Penalties: 0.4% of contract value per week of delay, capped at 5% total

8. EVALUATION CRITERIA

- Technical Capability: 35%

- Financial: 45%
- HSE & Compliance: 20%

DOCUMENT CLASSIFICATION: CONSTRUCTION CONTRACT

EXPECTED SCENARIO PROFILE: MEDIUM risk / PROCEED_WITH_CAUTION (bid_decision: YES)